

Selling Your Property in Cebu

A practical checklist from first decision to closing.

Last reviewed: September 2026

General information only

This checklist is a starting point, not legal, tax, or financial advice. Laws, fees, and government procedures change and vary by city. Confirm the details for your own deal with a lawyer, the BIR, the local Registry of Deeds, and the city or municipal offices involved.

1. Get clear on your goal

- ☐ Why are you selling, and by when? A firm deadline changes how you price and negotiate.
- ☐ Know what you need to walk away with after paying off any loan, taxes, and costs.
- ☐ Confirm who has to agree: every registered owner, the spouse where the property is conjugal, or all heirs if it is inherited.
- ☐ If the property is mortgaged, ask the bank how a sale and release of mortgage works, and what it needs from you.

2. Gather your documents early

Missing papers are the most common reason a sale stalls. Start this before you list.

- ☐ Owner's duplicate copy of the title (TCT or CCT), and a recent Certified True Copy from the Registry of Deeds.
- ☐ Latest Tax Declaration and proof that real property tax is paid up to date, plus a tax clearance.
- ☐ Valid IDs and TIN of every seller. Marriage certificate if applicable.
- ☐ If inherited: death certificate and the extrajudicial settlement of estate, with proof the estate tax was settled.
- ☐ If someone is signing for you: a properly notarized Special Power of Attorney. Sellers abroad should have it processed for use in the Philippines as required.
- ☐ For condos: certificate of no unpaid dues and the association's clearance.
- ☐ For a property with a house or building: building or occupancy permits, and any approved plans you have.
- ☐ If there is a mortgage: loan documents and the bank's written requirements for release.

3. Price it to sell

- ☐ Look at recent asking and closed prices for similar properties in the same area, not just what you paid or hoped for.
- ☐ Be honest about condition, age, flood exposure, access, and the neighborhood.
- ☐ Remember that government valuations (such as the zonal value) set a tax floor but are not the same as market price.
- ☐ Expect negotiation. Decide your lowest acceptable price before viewings begin.

- ☐ A listing priced too high sits, gets stale, and usually sells for less later. Review the price if you get few viewings in the first few weeks.

4. Prepare the property

- ☐ Declutter, deep clean, and do the small repairs: leaks, paint touch-ups, broken locks, working lights.
- ☐ Improve curb appeal: clean the gate, trim plants, clear the frontage.
- ☐ Take good photos in daylight and consider a short walkthrough video.
- ☐ Be upfront about known issues (flooding, boundary questions, occupants). Surprises found by the buyer cost you more than problems you disclosed.
- ☐ Settle who is occupying it and when it will be vacated.

5. Market it and stay safe

- ☐ Write an accurate description with the location, lot or floor area, key features, and the asking price.
- ☐ Share it in more than one place: online listings, social media, and your network.
- ☐ Screen buyers before viewings. Ask whether they are paying cash or need financing and whether they are pre-approved.
- ☐ Never hand over your original title or documents before the deal is properly signed and paid. Give copies for review.
- ☐ Arrange viewings in daylight and do not leave visitors alone in the property.

6. Offers and negotiation

- ☐ Ask for offers in writing: price, payment schedule, and timeline.
- ☐ Agree in writing who pays which closing costs. It is negotiable.
- ☐ Get a reservation fee and a receipt. State whether and when it is refundable.
- ☐ If the buyer needs a loan, agree on a realistic approval timeline and what happens if it is declined.
- ☐ Do not accept "assume balance" or side deals without your lender's written approval.

7. Closing costs and taxes, in plain steps

- **Costs you may face as seller:** capital gains tax, and sometimes other fees depending on your agreement (for example documentary stamp tax, transfer tax, and registration fees are often assigned to the buyer, but this is negotiable). Confirm current rules and rates with the BIR and your local offices.
- **Capital gains tax:** for an individual selling real property held as a capital asset, it is computed on the higher of the selling price or the government's zonal or assessed value. The return has a short deadline after notarization (about 30 days), and late filing brings surcharges and interest. If the property is held as an ordinary asset (for example, by a real estate business), different rules apply.
- **Selling your home?** There is a possible exemption when the property was your principal residence and you reinvest the proceeds in a new principal residence within the required period and notify the BIR on time. Ask the BIR or your lawyer whether you qualify.
- **Step 1:** Sign and notarize the Deed of Absolute Sale.
- **Step 2:** File and pay the taxes at the BIR and obtain the Certificate Authorizing Registration (CAR / eCAR).
- **Step 3:** Transfer tax is paid at the city or municipal treasurer's office, and the deed is registered with the Registry of Deeds so the title moves to the buyer.

8. After the sale

- ☐ Turn over keys and possession only when the agreed payment has cleared. Do not rely on a check that has not cleared.
- ☐ Record final utility readings and close or transfer your accounts.
- ☐ Settle any association or condo dues up to turnover.
- ☐ Keep copies of the signed deed, receipts, and tax payments for your records.
- ☐ Confirm the transfer was registered and the new title issued.

Watch out for these

A buyer who wants to skip the notary or registration. A manager's check that has not been verified with the bank. "Overpayment" and refund requests. Proof-of-funds documents you cannot verify. Anyone pressuring you to hand over the original title before full payment. Verbal-only agreements.

Thinking of selling in Cebu City or Talisay?

I can give you a free, no-obligation view of how your property is likely to price and how I would market it. For legal and tax questions, always involve a lawyer.